

DEPARTMENT OF VETERANS AFFAIRS

**Justification and Approval (J&A)
For
Other Than Full and Open Competition**

Acquisition Plan Action ID: 36C263-26-AP-1537

1. **Contracting Activity:** Department of Veterans Affairs (VA), Veterans Integrated Service Network (VISN) 23, Network Contracting Office (NCO) 23, Purchase Request (2237) Number: 636-26-3-8822-0017
2. **Nature and/or Description of the Action Being Approved:** This justification is in support of a new, single award, Firm-Fixed-Price (FFP) contract for an Architectural-Engineering (AE).
3. **Description of Supplies/Services Required to Meet the Agency's Needs:** Iowa City VA Health Care System (ICVAHCS) has a need for Construction Period Services (CPS) for Project Number: 636A8-22-001 Renovate 6th Floor Clinical Support Construction Period Services (CPS). These services are in support of construction phase of this project. CPS includes bidding support services, construction support services, and record drawings of the completed project. The approximate estimated value of these services is [REDACTED]
4. **Statutory Authority Permitting Other than Full and Open Competition:** 41 USC §3304(a)(5), 38 U.S. Code § 8127(c), as implemented by RFO 6.103-5 (Authorized or Required by Statute). COs may use the non-competitive (sole source) procedures authorized in [VAAR 819.7008 \(DEVIATION\)](#) or [VAAR 819.7009 \(DEVIATION\)](#)- up to \$5,000,000. Check the specific VAAR clause used below:
(X) 819.7008 Sole source awards to a certified service-disabled veteran-owned small business
5. **Demonstration that the Contractor's Unique Qualifications and/or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):** 38 U.S. Code § 8127(c) allows sole source awards to a SDVOSB concern if the concern has been determined to be a responsible source with respect to performance. Geo Bancroft Engineering LLC, Inc. has had no known issues with performance that would not allow a sole source contract under this authority. Geo Bancroft Engineering LLC, Inc. has met the requirements under VAAR 819.7003 (DEVIATION) and has been determined to be an eligible SDVOSB.

The following narrative demonstrates that it is in the government's best interest to sole source this requirement under the authority VAAR 819-7008. The original design and construction documents (drawing and specifications) of this project were completed under Contract Number: 36C26319D0044; Task Order Number: 36C26322N0625. The task order included CPS as options, but the option was never exercised due to the lack of funding for the construction project. The task order was closed out on April 10, 2025. This project is currently approved on the Strategic Capital Investment Plan (SCIP) so there is now a need for CPS.

The services requested for this acquisition would allow the original design firm, Stone Group Architects, Inc., to provide and perform CPS without going through additional costly design reviews.

It is expected that no duplication of costs would be passed on to the government, whereas if

another AE firm was expected to conduct these services; there would be additional costs associated with the liability and time needed for reviewing another firm's design and construction documents. There would also be costs associated with providing construction support services (answering RFI, issuing ITC's, etc.) on a project that was not their own. It is also assumed that there would be some additional costs to CPS to mitigate the risk of providing support to another firm's design.

The factor to sole source the CPS back to the AE record of design is due to no added liability costs for services performed during construction. During construction, many questions and requests for opinions or instructions on the design, specifications, and drawings are posed to the AE to provide a clear direction or understanding of the intent back to the construction contractor. Most of these responses and/or instructions can be provided easily by the AE of record as they provided the plans and design based upon their own independent studies and reviews of the project needs.

Even if assuming a sole source contract added a premium to the procurement price due to lack of competition, it would not equal the cost and time savings that the government would receive by sole sourcing this requirement to Geo Bancroft Engineering LLC.

Due to the projected cost and time savings, a sole source procurement is being pursued. Continuing to have Geo Bancroft Engineering LLC as the AE of record during construction will save the government money and allow for a basis of efficiency. It would be costly to have another AE firm duplicate the efforts already paid for and pay a higher price to offset any liabilities that another firm would be held to for a project that another AE has designed.

6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable, including whether a notice was or will be publicized as required by RFO 6.301 and, if not, which exemption under RFO 5.101(b)(1) applies:** Market research was conducted; however, seeking a competitive solution for CPS would likely result in additional costs and time to the government so a sole source contract is being sought.

Market research techniques used to identify potential sources for this requirement include contacting knowledgeable individuals in this industry regarding market capabilities to meet the requirement without duplication of costs or additional time. An email was sent to AE firms inquiring about the willingness to perform additional design services, including CPS, and what if any, impact there would be on cost and time.

A Notice of Intent to sole source was posted on April 7, 2026, to SAM.gov/Contract Opportunities; Notice Number: 36C26326R0055. The notice indicated that the intent was to sole source a contract with Stone Group Architects, Inc. utilizing FAR 6.302-1 authority; however, it was decided to change the authority to VAAR 819.7008. It provided a brief synopsis of history of this project which supported the rationale of why it was the government's intent to sole source to Geo Bancroft Engineering LLC. An opportunity for firms to respond to the notice was provided until April 22, 2026, and no responses were received. Although the purpose and content of the Notice of Intent did not change, an amended notice referencing the revised authority was published.

7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:** It is anticipated that the cost will be considered fair and reasonable. A separate price fair and reasonableness determination will be conducted using the techniques described in FAR

15.404-1(b), including but not limited to a technical/price evaluation of the AE's proposal in comparison to the IGCE that has been provided by the Contracting Officer's Representative (COR).

8. Description of the Market Research Conducted and the Results, or a Statement of the Reasons

Market Research Was Not Conducted: Limited market research was conducted specifically for this project; however, due to the uniqueness of this project and under the VAAR 819.7008 authority, a sole source is being conducted. Market research techniques used to identify potential sources for requirements like this, such as adding CPS for a project that has already been designed included contacting knowledgeable individuals in this industry regarding market capabilities to meet the requirement without duplication of costs or additional time. Current and previous discussions with several AE firms were held to determine what, if any, impacts could be had on an AE firm when executing additional design efforts and/or CPS on another AE's design. In response to the email sent out to AE firms about the willingness to perform additional design services, including CPS, and what if any, impact there would be on cost and time, all AE firms responded that while yes, they could take on the responsibility of another firm's design, it would not be ideal and would not come without additional costs and time. In reviewing the responses received, much of the additional costs and effort of time would be duplicated due to the need for additional reviews and having to learn the design and project. In addition, there would be cost and time risk involved for both the government and the AE firm. The risk to the AE firm is having to be liable for another firm's design. This would create the need for higher costs to ensure that the risks are mitigated. Ultimately, the government would need to pay a premium for these services if another AE firm performed them.

AE firms, other vendors, or the public were provided an opportunity to respond to the Notice of Intent to sole source that was posted on April 7, 2026, to SAM.gov/Contract Opportunities. There were no responses received on the posted notice.

Other market research efforts included querying Small Business Administration (SBA) Small Business Search for SDVOSB vendors. A strict search for SDVOSB vendors in South Dakota and states within VISN 23 under NAICS 541330—Engineering Services was conducted and resulted in 71 vendors; however, the results showed many of the vendors listed were not AE firms. An additional separate search was conducted for Stone Group Architects, Inc. and resulted in an active SDVOSB certification.

The results of the market research efforts indicate that soliciting from additional sources would not be practicable, i.e., better use of taxpayer money. Soliciting to other sources would likely create unwarranted and unnecessary added costs, time delays, and risks; therefore, a sole source award is being pursued.

There are no exceptions to the Buy American Act or Trade Agreement Act for this requirement.

As described in Section 6 above, market research, in accordance with FAR Part 10, was advising industry of the pending acquisition and soliciting inquiries from interested parties.

9. Any Other Facts Supporting the Use of Other than Full and Open Competition: *AE firm for this effort would likely be backtracking on some efforts that have already been conducted with the design process. The AE has designed the kitchen renovation, including over two hundred pieces of kitchen equipment, to fit the footprint of the proposed space. The vendor has also specified the*

utility requirements for each piece of equipment. Additionally, this requirement is being executed under the authority of 38 U.S. Code § 8127(c).

10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:** None. A Notice of Intent to Sole Source was posted on April 6, 2026, and there were no interested parties that responded to the notice.
11. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** No action is planned specifically for this requirement. The original design was competed in accordance with FAR 36.6 and the AE firm was selected based on its qualifications. All new design requirements are completed and awarded to the most qualified firm.
12. **Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

 Digitally signed by Della-Lynne Caldwell
DN: C=US,
E=della-lynn.caldwell@va.gov,
O=Veterans Affairs, CN=Della-Lynne
Caldwell
Date: 2026.04.06 15:18:29-05'00'

Della-Lynne Caldwell
Healthcare Engineer
Iowa City Health Care System

13. **Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP:](#)**

- a. **Contracting Officer or Designee's Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

**MICHAEL
WARRICK**  Digitally signed by
MICHAEL WARRICK
Date: 2026.04.06
15:24:13 -05'00'

Michael B. Warrick
Contracting Officer
Network Contracting Office 23 (NCO 23)